

[Return to Search](#)

Original Page: 16

Culture (OWC): [Ila \(FQ06\)](#)

Region: Africa

Sub Region: Southern Africa

Field Date: 1977-1978

Coverage Date: 1920 AD - 1978 AD

Place Coverage: Namwala District, Zambia

Section Title(S): STOCKTHEFT AND CATTLE RUSTLERS

Prior to commercial disposal of stolen cattle, it was held that the thieves' residential fellows were collectively responsible for theft of cattle by one of their members. This was true, since the presence of a full-grown animal in the kraal when one or that sort was not previously present, or an abnormal proportion of calves to cows, was unlikely to escape the notice of fellow kraal members. Moreover, if the theft was not detected by the victim, it was held that the thieves' group ultimately stood to profit from the distribution of stolen cattle. Since the cattle stolen by jackals were destroyed as quickly as possible, it was unlikely that the thieves' fellows were cognizant of the theft of that they fully benefited from the proceeds of illicit cattle sales, since money could more easily be hidden from them. If discovered stealing cattle for destruction, jackals were culpable to the same degree as murderers and sorcerers, and compensation for destruction was often as many as twenty cattle.⁸ Since the knowledge of jackals' activities and the profits gained from such activities were mostly apart from group domain, self-aggrandizing jackals were increasingly left to their own devices should they be caught destroying cattle. Only when group cattle resources were threatened did the jackals' groups assume any collective responsibility. They could accept mitigated responsibility, pay the required compensation, and then sanction the jackal within the group (i.e., usually banishment) or suggest that the matter be turned over to the district magistrate. In the case of the latter, there were no questions of collective responsibility, since each jackal was held individually accountable for his actions.

231
Domesticated Animals

422
Property In Movables

432
Buying And Selling

648
External Relations

685
Property Offenses

In 1931, there were twenty-nine incidents of cattle rustling reported to the district magistrate. According to a district officer at the time, the rustlers were "mostly young men who want to buy smart clothes to impress the ladies" (Namwala District Report, 1931). Moreover, it was noted that:

432
Buying And Selling

434
Income And Demand

They rarely deny the theft, and regard the matter as a joke. The natives are quite prepared to deal with this matter by compensation, but have been told that this is a matter for the Boma. Eleven of the twenty-nine were sentenced to 12-15 months in prison.

The joke was painfully clear. The jackal could not ransom himself with compensation, and his kinsmen had apparently refused to accept any responsibility for him in the matter. The stolen cattle had already been destroyed, and there was little likelihood that they would be returned to the victim. The proceeds of the sale could not be attached, and even if the jackal were found guilty, he would not have to compensate his victim, since the crime of stocktheft carried a penal rather  17 than a compensatory sanction. One year in prison was often deemed a lighter punishment than the payment of twenty cattle, but then only eleven of the twenty-nine defendants noted above were found guilty and then sentenced. The burden of proof in such criminal prosecution was upon the state, and the primary evidence was probably hanging in a butcher shop hundreds of miles away. In many instances, evidence was inadmissible as hearsay. With a better than fifty-fifty chance of being found innocent, jackals could well afford to regard the matter as a joke. Indeed, if they were found innocent, their first response would be to initiate a civil suit against their accuser(s) for false accusation. Being found innocent by the district magistrate was usually enough evidence to guarantee both success in a civil action and a settlement of two or three cattle as a compensatory payment.

685
Property Offenses

694
Initiation Of Judicial
Proceedings

695
Trial Procedure

883
Adolescent Activities

8. Prior to pacification, offenses of this sort could be punished by death. Although many felt that this was a proper sanction, colonial law found the death penalty to be "repugnant."

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